



CHAPTER xxx.

An Act to make further provision as to the chairmen of courts of quarter sessions holden for the county palatine of Lancaster and for other purposes. A.D. 1928.

—

[2nd July 1928.]

WHEREAS the general quarter sessions of the peace in and for the county palatine of Lancaster have for many years past been held at Lancaster within the hundred of Lonsdale and by adjournment at Preston within the hundreds of Amounderness Blackburn and Leyland at Manchester within the hundred of Salford and at Liverpool within the hundred of West Derby :

And whereas by the Lancashire County Justices Act 1879 provision was made for the appointment by the justices of the peace acting within the hundreds of Amounderness Blackburn and Leyland in the said county of a chairman of the general quarter sessions of the peace holden for the said county at Preston and the payment of a salary to such chairman :

And whereas under an Act of the forty-fifth year of the reign of King George the Third chapter fifty-nine and an Act of the sixth year of the reign of King George the Fourth chapter one hundred and twelve provision was made for the appointment by the justices of the peace acting within the hundred and division of Salford in the said county of a chairman of the general quarter sessions of the peace holden for the said county within the hundred of Salford and the payment of a salary to such chairman :

A.D. 1928.

And whereas the offices of chairman of general quarter sessions of the peace holden by adjournment at Preston and within the hundred of Salford at Manchester as aforesaid are now held by one and the same person and it is expedient that provision should be made for combining the said offices :

And whereas it is expedient that the justices of the peace acting within the hundred of Lonsdale aforesaid and the justices of the peace acting within the hundred of West Derby aforesaid should be authorised to appoint salaried chairmen of the respective quarter sessions of the peace holden within such hundreds :

And whereas it is expedient to make provision whereby one and the same person may be appointed and act as salaried chairman of general quarter sessions of the peace to be holden for the said county in any two or more of the said hundreds respectively :

And whereas it is expedient to make provision as to the salaries to be paid to and pensions for any such salaried chairman or chairmen and as to the rates funds or moneys out of which the same shall be payable and that such other provisions should be made with reference to the aforesaid matters as are in this Act hereinafter contained :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short
title.

1. This Act may be cited as the Lancashire Quarter Sessions Act 1928.

Interpre-
tation.

2. In this Act unless there be something in the subject or context repugnant to such construction—

“the county” means the county palatine of Lancaster;

“the administrative county” means the administrative county of the county;

“the council” means the county council of the administrative county;

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“ the clerk of the peace ” includes the deputy clerk of the peace or other person discharging the duties of clerk of the peace of the county;

“ the Lancaster justices ” means the justices of the peace for the county acting within the hundred of Lonsdale and present at a general quarter sessions of the peace holden for the county at Lancaster or elsewhere within the said hundred;

“ the Preston justices ” means the justices of the peace for the county acting within the hundreds of Amounderness Blackburn and Leyland and present at a general quarter sessions of the peace holden by adjournment for the county at Preston or elsewhere within the said hundreds;

“ the Manchester justices ” means the justices of the peace for the county acting within the hundred of Salford and present at a general quarter sessions of the peace holden by adjournment for the county at Manchester or elsewhere within the said hundred;

“ the Liverpool justices ” means the justices of the peace for the county acting within the hundred of West Derby and present at a general quarter sessions of the peace holden by adjournment for the county at Liverpool or elsewhere within the said hundred;

“ Lancaster quarter sessions ” means the general quarter sessions of the peace holden for the county at Lancaster or elsewhere within the hundred of Lonsdale;

“ Preston quarter sessions ” means the general quarter sessions of the peace holden by adjournment for the county at Preston or elsewhere within the hundreds of Amounderness Blackburn and Leyland;

“ Manchester quarter sessions ” means the general quarter sessions of the peace holden by adjournment for the county at Manchester or elsewhere within the hundred of Salford;

“ Liverpool quarter sessions ” means the general quarter sessions of the peace holden by adjournment for the county at Liverpool or elsewhere within the hundred of West Derby;

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“Quarter sessional division” means the hundred or hundreds respectively within which the Lancaster quarter sessions the Preston quarter sessions the Manchester quarter sessions and the Liverpool quarter sessions are held;

“General quarter sessions” shall include intermediate general sessions.

As to
chairman
of Preston
and
Manchester
quarter
sessions.

3.—(1) The offices of chairman of the Preston quarter sessions and chairman of the Manchester quarter sessions shall be combined and shall be held by one and the same person.

(2) Subject to the provisions of this Act as and from the date on which the present chairman of the Preston quarter sessions and the Manchester quarter sessions shall cease to hold office as such the Preston justices and the Manchester justices may from time to time when occasion shall require appoint any person to be salaried chairman of the Preston quarter sessions and the Manchester quarter sessions so long as he remains in the commission of the peace for the county and may fix and from time to time alter the salary of and may remove any person so appointed. It shall be the duty of any person while holding such joint offices to officiate as such whenever the said sessions are held accordingly.

Power to
appoint
salaried
chair-
man of
Lancaster
quarter
sessions.

4. Subject to the provisions of this Act the Lancaster justices may from time to time appoint any person to be salaried chairman of the Lancaster quarter sessions so long as he remains in the commission of the peace for the county and may fix and from time to time alter the salary of and may remove any person so appointed. It shall be the duty of any person while being such chairman to officiate as such whenever the said sessions are held accordingly.

Power to
appoint
salaried
chair-
man of
Liverpool
quarter
sessions.

5. Subject to the provisions of this Act the Liverpool justices may from time to time appoint any person to be salaried chairman of the Liverpool quarter sessions so long as he remains in the commission of the peace for the county and may fix and from time to time alter the salary of and may remove any person so appointed. It shall be the duty of any person while being such chairman to officiate as such whenever the said sessions are held accordingly.

6. The persons who shall be eligible for appointment as salaried chairmen of quarter sessions shall be persons who are justices of the peace for the county and barristers-at-law of not less than ten years' standing and whose state of health is satisfactory.

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Qualifica-
tion of
salaried
chairmen.

7. A person holding office as salaried chairman of quarter sessions shall vacate his office at the end of the completed year of service in the course of which he attains the age of seventy-two years :

Compulsory
retirement
of salaried
chairman.

Provided that the justices by whom such person was appointed may if they think fit authorise his continuance in office up to such later age not exceeding seventy-five years as they may from time to time resolve.

8.—(1) Subject to the provisions of this Act there shall be paid to each person appointed chairman of quarter sessions under the provisions of this Act so long as he continues to officiate as such chairman such salary not exceeding—

Salaries of
chairmen.

(a) in the case of the chairman of Preston quarter sessions and Manchester quarter sessions one thousand pounds a year ;

(b) in the case of the chairman of the Lancaster quarter sessions two hundred pounds a year ;

(c) in the case of the chairman of the Liverpool quarter sessions five hundred pounds a year ;

as the justices of the quarter sessions by whom he is appointed may from time to time determine.

(2) For the purposes of this section the person who shall at the date of the passing of this Act be the chairman of both the Preston and Manchester quarter sessions shall be deemed to have been appointed as chairman thereof under the powers of this Act at the salary which he shall at that date be receiving as chairman of those quarter sessions.

9. Subject to the provisions of this Act the justices in quarter sessions may from time to time appoint any person being a justice of the peace for the county and a barrister-at-law of not less than ten years' standing as deputy chairman to act as chairman of quarter sessions in the absence of the salaried chairman thereof by reason of sickness or otherwise or to act as chairman of a second court on any occasion when such second court is held

As to
deputy
chairmen.

A.D. 1928. — There shall be paid to any person appointed under the provisions of this section such fee as the said justices may from time to time determine not exceeding ten guineas for every day on which he shall act as chairman of quarter sessions or on which he shall act as chairman of any rating appeal committee appointed by such justices under the Rating and Valuation Act 1925 or any statutory modification thereof.

As to
combined
chairman-
ships.

10.—(1) Nothing in this Act shall prevent any person if qualified as provided by this Act holding office as chairman or deputy chairman of the Lancaster and also of the Liverpool quarter sessions or of the Lancaster and also of the Preston and Manchester quarter sessions or of the Liverpool and also of the Preston and Manchester quarter sessions or of all four quarter sessions.

(2) The salary to be paid to any person being chairman of more than one of such quarter sessions shall not exceed the aggregate of the salaries which might have been paid under the powers of this Act to separate chairmen of each of such quarter sessions.

As to
vacancy
in office of
chairman.

11. The clerk of the peace shall within twenty-eight days of the occurrence of any vacancy in the office of chairman appointed or deemed to have been appointed under the powers of this Act give notice thereof to the justices acting within the quarter sessional division or divisions in which such vacancy occurs and by publication of a notice in one or more local newspapers circulating in such quarter sessional division or divisions and a fresh appointment shall not be made until the expiration of at least twenty-eight days after the publication of such newspaper notice.

As to
pension to
salaried
chairmen.

12.—(1) It shall be lawful for the justices acting within the quarter sessional divisions of Preston and Manchester to grant a pension to any salaried chairman of the Preston and the Manchester quarter sessions in the event of his retiring from office—

- (a) after having attained the age of sixty-five years and having completed fifteen years' service; or
- (b) in consequence of his becoming unable by reason of permanent infirmity to perform the duties of his office.

(2) Any such pension shall be calculated in accordance with the scale contained in the schedule to this Act. A.D. 1928.

(3) In the event of any such salaried chairman being also salaried chairman of the Lancaster and the Liverpool quarter sessions or either of such sessions his salary for the purposes of pension shall be deemed to be the total amount of his salary or salaries as chairman of quarter sessions at the date of his retiring from office.

(4) For the purposes of this section the person who at the date of the passing of this Act is chairman of the Manchester and Preston quarter sessions shall be deemed to have been appointed to that office on the second day of January one thousand nine hundred and eighteen.

13. For the purposes of exercising any powers of this Act in relation to the appointment salary continuance in office and removal therefrom or pension of any salaried chairman of more than one of the said quarter sessions the justices acting within each quarter sessional division who are entitled to exercise such powers shall act by a joint committee equal numbers whereof shall be appointed by them but no justices of any such quarter sessional division shall appoint more than twelve members of any such committee. As to joint exercise of powers by justices.

14.—(1) Any salary paid to any salaried chairman under the provisions of this Act shall be paid by the council and shall be provided out of moneys levied by the council as if they were county contributions levied for special county purposes within the meaning of the Local Government Act 1888 and assessed on the area comprising the hundred or hundreds within which those justices of whom he is chairman are acting. As to payment of salaries pensions and fees.

(2) For the purpose of raising any moneys which are under the provisions of this section to be levied as if they were county contributions levied for special county purposes within the meaning of the Local Government Act 1888 any county borough which is not a quarter sessions borough and which is within the area comprising the hundred or hundreds on which any such moneys are assessed shall be deemed to be within such hundred or hundreds and to be part of the administrative county accordingly.

(3) Any pension paid under the provisions of this Act to any salaried chairman after his retirement from

A.D. 1928. office shall be charged on and paid by the council out of moneys levied by them and assessed in the same manner and on the same area as the moneys out of which the salary of such chairman was paid were levied and assessed at the date of his retirement from office.

(4) All fees paid under the provisions of this Act shall be paid by the council out of the county fund as payments for general county purposes.

Repeal.

15. The following provisions are hereby repealed :—

The Act 45 George III. chapter lix ;

The Act 6 George IV. chapter cxii ;

Sections 18 19 and 20 of the Lancashire County Justices Act 1879.

Costs of Act.

16. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be defrayed by the council out of the county fund.

The SCHEDULE referred to in the foregoing Act.

SCALE OF PENSIONS.

1. An annual pension not exceeding ten-sixtieths of the last annual salary may be granted after the completion of a period of service of five years.

2. Where the period of service completed exceeds five years there may be granted an annual pension not exceeding ten-sixtieths of the last annual salary with an addition of one-fortieth of that salary for each completed year's service in excess of five.

3. The maximum pension shall be two-thirds of the last annual salary.

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